



Notification Waiver Determination

Sekisui Chemical – Ausbuild

Acquisition	Sekisui Chemical Co., Ltd. (Sekisui Chemical), through Sekisui Heim Australia Ac Pty Ltd, applied for a notification waiver in respect of its proposed acquisition of 51% of the issued shares in each of Matthew Loney Ausbuild Pty Ltd, Michael Loney Ausbuild Pty Ltd and Matthew Bell Ausbuild Pty Ltd (collectively, the Target Companies), as described in the transaction documents provided as part of the application (the Acquisition). As part of the Acquisition, the sellers of the shares will continue to hold 49% of the issued shares in the Target Companies, subject to a Call and Put Option Deed (Option Deed). Under the Option Deed: - the Sekisui Heim Australia Ac Pty Ltd will have a Tranche 1 call option, and each seller a corresponding Tranche 1 put option, entailing transfer of shares in the Target Companies to the Sekisui Heim Australia Ac Pty Ltd (to hold 90%); and - each seller will have a Tranche 2 put option requiring the Sekisui Heim Australia Ac Pty Ltd to acquire the remaining shares held by that seller in any target company, exercisable from the later of the fifth anniversary of Share Sale Agreement completion or the date of Tranche 1 option exercise.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	2 October 2026

Parties to the Acquisition	The acquirer, Sekisui Chemical, is a Japanese company listed on the Tokyo Stock Exchange. Its main businesses are the development and manufacturing of a wide range of advanced materials for electronics, motor vehicles, industrial and research equipment, and buildings and infrastructure. The extent of Sekisui Chemical's operations in Australia is limited to manufacturing and supplying: - spiral pipe rehabilitation technologies for civil application; and - cross-linked polyolefin foam for use in construction, industrial and manufacturing applications, and to a lesser extent, as insulation in residential construction. The Target Companies are each a holding entity which ultimately hold shares in Ausbuild Group Pty Ltd (Ausbuild). The main business
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	activities of Ausbuild and its subsidiaries are to acquire land for development of primarily detached houses, to construct houses and to sell them to homebuyers. Ausbuild operates exclusively within the Greater Brisbane area, in the specific local government areas of Brisbane, Logan, Redlands, Ipswich and City of Moreton Bay.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is very small horizontal overlap between Sekisui Chemical and Ausbuild in the supply of residential land development and homebuilding in the Greater Brisbane area b. there are several alternative suppliers of residential land development and homebuilding in the Greater Brisbane area, and Queensland more broadly c. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act